

एन टी पी सी माइनिंग लिमिटेड

**DELEGATION OF POWERS FOR BUSINESS DEVELOPMENT, MARKETING AND CONSULTANCY
ASSIGNMENTS UNDER NTPC MINING LIMITED**

S No	Subject Matter	Extent of Power	Delegation Level / C.A.	Remarks
I. Marketing Stage:				
1(a)	Sanction of expenditure on market Surveys, services of interpreter, Investigations, seminars and publicity etc. for market development and business promotion.	Full Powers	CEO	Subject to Budget provisions.
1(b)	Sanction of expenditure in foreign currency on market Surveys, services of interpreter, Investigations, seminars, and publicity etc. for market development and business promotion	Full Powers	Board of NML	CEO shall have powers Up to Rs. 50 lakhs equivalent in Indian currency.
2	Sanction for Purchase of Tender Document/Pre- qualification/ RFP Document/ Application fees, EMD, BG etc for assignment related to these functions	Full Powers	CEO	Subject to Budget provisions.
3	Award of works for drafting/designing/preparation of drawing/ photocopying/ binding/ translation/ printing/ making promotional brochures/videos, publishing of EOI/articles in newspaper or online media etc. in connection with promotion of business development and bid preparation.	Full Powers	CEO	Subject to Budget provisions. <i>Preference to be from empanelled agencies, if any.</i>
4(a)	Approval for submission of Expression of Interest/ Pre-Qualification/ RFQ for international and domestic assignments	Full Powers	CEO	i) Subject to availability of resources from concerned department. ii) In cases where consortium is envisaged for participation in bid, the powers are vested with the Board of NML followed by appropriate action as per AoA of the company.
4(b)	Approval for decision to bid for domestic and international assignments	Full Powers	CEO	
5	Sanction to tie up with outside agency or sub- contractor for the purpose of bid as approved vide item no. 4 (b): Domestic and Foreign Tie-up	Full Powers	NML Board	i) Tie-up where foreign exchange outgo is involved is to be considered as foreign tie up. ii) Subject to inclusion in the cost sheet and back-to-back tie- up. In case Back-to-Back tie up is not possible in totality, cost implication for the same is to be considered in the cost sheet. iii) No financial liability to NML in case bid is not successful. iv) From empanelled agencies, where available. In case of non-availability of panel, from short listed vendor(s) to be finalized by a committee comprising of members from C&M, BD and Finance. The short-listed vendor(s) shall be approved by CEO.
		Up to Rs. 10 crores of value of sub-contract	CEO	
		Up to Rs. 20 crores of value of sub-contract in case of PSU/State Owned enterprise	CEO	



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				v) For limited tender above Rs 50 Lakhs and single tender enquiries, reasons for adopting such modes of tendering shall be recorded in writing, while obtaining approval of the competent authority.
6	Engagement of expert	Full Powers Up to Rs. 1 Crore	NML Board CEO	i) Inclusion in the cost sheet and back-to back tie-up. ii) No financial liability to NML in case bid is not successful. iii) As per client requirement. Guidelines to be followed for engaging consultants is placed at Annexure-A.
7(a)	Approval of cost sheet	Full Powers Up to Rs. 75 Crores Up to Rs. 20 Crores	NML Board BLMC CEO	Man days/ Man months rates for various categories of employees and for all types of services including escalation factor duly approved and prevailing in the parent company will be considered for the purpose of cost sheet.
7(b)	Approval of Terms & Conditions of the bid	Full Powers Up to Rs. 75 Crores Up to Rs. 20 crores	NML Board BLMC CEO	
8	Decision on Bid Price including Post Bid Modification, if any	Up to 2.5% profit margin over approved cost sheet vide item 7(a) Beyond 2.5% profit margin over approved cost sheet vide item 7(a)	NML Board CEO	In case the proposed bid price is lower than the approved cost then the approval of Board shall be obtained again or simultaneously before submission of the offer.
9	Powers to execute legal documents in respect of activities in connection with the bid, all acceptance of contract and signing of agreement etc.	Full Powers	CEO	i) Wherever necessary legal advice to be obtained. ii) After approval by the competent authority as per S. No. 7 & 8 or as per S No 4(a), as applicable.
10	Nomination and approval of Project Manager/Site Resident Manager	Full Powers	CEO	In consultation with concerned HOD where transfer is not involved. In case transfer is involved, the same shall be as per prevalent HR policy. Project Manager/SRM will not be less than DGM in case of assignments involving site activities at client's site. In any case, Project manager will not be less than Sr. Manager Level.
11	Power to register or to claim any export incentives for pre-bid stage of a bid from any organization of GOI under any scheme.	Full Powers	CEO	In consultation with finance.
II. Execution Stage:				
12	Sanction of expenditure of subscription to websites.	Full Powers	CEO	Subject to approved budget provision in consultation with finance.



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	database, business gateways, Magazines, business reports, journals, books (including E-Magazines E-Journals, e-books), or items of similar nature.			
13	Approval of Non-Disclosure Agreement/ Confidentiality Agreement for sharing & receiving information regarding business opportunities.	Full Powers	CEO	Subject to legal vetting.
14	Powers to execute legal documents in respect of all activities during execution of the approved contract.	Full Powers	Project Manager / Site Resident Manager	Wherever necessary legal advice to be obtained.
15	Approval for award of works/service contracts as per tie-up approved vide S No 5 for both domestic/foreign tie-up	Full Powers	BLMC	Subject to cost sheet provisions and general guidelines in this regard.
		For value of sub-contract up to 20 crores in case of PSU/ State owned enterprise	CEO	
		Up to Rs. 10 Crores for other cases	CEO	
		Up to Rs. 50 Lakhs for all cases	Project Manager	
16	Approval for cost estimates, calling of tenders, award of works/services during execution of contract for Non-Tie up cases	Full Powers	BLMC	i) Subject to Cost sheet provisions. ii) On limited tender basis from empanelled agencies where applicable/ available. In case of non-availability of panel, the short-listed parties shall be for LT or latest amendments as per Works and Procurement Policy. List of parties to be approved by CEO. iii) Any extension of bid submission deadline/ bid opening date shall be approved by CEO.
		For value of sub-contract up to 20 crores in case of PSU/ State owned enterprise	CEO	
		For value of sub-contract up to Rs. 3 Crore for other cases	CEO	
		Up to Rs. 25 lakhs of value of subcontract for all cases	Project Manager	
17	Approval of variation during execution with respect to award price, extension in completion period and reduction/waiver of LD for the contracts awarded as per S No 15 & 16 above.	Full Powers	NML Board	Subject to full recovery of cost from client/provision in cost sheet and other terms & conditions agreed by client on back-to- back basis.
		Full Powers	CEO	
18	Modification in terms of contract not having financial implications or Contracts involving financial implications which is not quantifiable e.g. reduction in BG/ change in terms of BG, indices related changes etc	Full Powers	CEO	Adequate reasons are to be recorded to establish that financial implications of modification are not being quantifiable. These powers shall be exercised in consultation with Finance.
		Full powers in respect of contracts approved by himself or lower authority	Project Manager	



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19	Approval for providing temporary relief in exceptional circumstances by way of advancing payment or deferment of recovery including recovery towards security deposit.	Full Powers	BLMC	Financial implication for the purpose of this item shall be interest, calculated on temporary relief provided to the contractor at the rate notified by the Company from time to time, irrespective of the fact that such relief including interest and foreign exchange variation is adjustable / recoverable from the contractor. These powers shall be exercised in consultation with Finance, only as a last resort to enable the work being carried out, taking care that this does not provide undue benefit to the contractor. Advance against work done duly certified by Engr-In-charge may be given to enable further progress of work to be carried out and such advance shall not be interest bearing and will be adjusted within 30 days, beyond which it shall attract interest.
		Full powers in respect of contracts approved by CEO or lower authority. For other contracts full powers subject to maximum financial implication of Rs 50 lakhs in respect of each of the contracts referred above.	CEO	
20	Sanction of advertisement expense for invitation of tenders	Full Powers	Project Manager	Subject to provision in cost sheet/ reimbursement by the client.
21	Approval of revised cost sheet [original as approved vide S. No. 7(a)] for variation in contract price, extension in completion period, settlement of LD or price escalation Interim/ final settlement of claims with Client not covered in the contract.	Full Powers	BLMC	Based on the committee report of the members consisting of Project Manager, Contracts and Finance.
		Up to Rs. 5 Crores	CEO	
		Up to 2.5% profit margin over approved cost vide item 7(a) Exceeding 2.5% profit margin over approved cost vide item 7 a.	BLMC CEO	
22	Power to register or to claim any export incentives during execution of contract from any organization of GOI under any scheme	Full Powers	Project Manager	In consultation with finance
23	Transfers within consultancy assignment sites	-	-	Subject to cost sheet provisions in case of site posting, approved budget provisions and applicable HR policies.
24	Sanction of hiring of conveyance	Full Powers	CEO	Subject to cost sheet provisions
		Full Powers	Project Manager / Site Resident Manager	Subject to provisions in resource allocation sheet.
25(a)	Approval of cost estimate, calling of tenders for procurement of material/ services on behalf of client	Full Powers	BLMC	For Open Tender Single response on open tender or Limited tender or Single Tender on "Original Equipment Supplier or Manufacturers who are PSUs for R&M" or Single tender on
		Up to Rs 5 Crores	CEO	
		Up to Rs. 2 Crores	CEO	



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				other than OES or Single tender on PSUs/Central/State Govt. dept
		Up to Rs. 50 lakhs	CEO	For single tender on grounds of urgency or availability of single source.
		Up to Rs. 10 lakhs	CEO	Single tender on grounds other than above.
25(b)	Approval for extension of bid submission deadline/bid opening date for procurement of material/ services on behalf of client	Full Powers	CEO	
26	Approval of award recommendation for procurement of material/services on behalf of client.	Full Powers	BLMC	Prevailing procurement procedures to be followed.
		Up to Rs. 50 crores	CEO	For open tender
		Up to Rs 2 Crores	CEO	Single response on open tender or Limited tender or Single Tender on "Original Equipment Supplier or Manufacturers who are PSUs for R&M" or Single tender on other than OES or Single tender on PSUs/Central/State Govt. dept.
		Up to Rs 50 lakhs	CEO	For single tender on grounds of urgency or availability of single source.
		Up to Rs 10 Lakhs	CEO	Single tender on grounds other than above.
27	Decommissioning and dismantling of plant setup of clients			
(a)	Valuation/Review of valuation of asset	Full Powers	BLMC	
(b)	Recommendation for sale of asset	Full Powers	BLMC	

General Notes:

1. BLMC: Board Level Management Committee; C.A.: Competent Authority
2. Man days/ Man months rates for various categories of employees and for all types of services including escalation factor duly approved and prevailing in parent company, will be considered for the purpose of cost sheet.
3. All approvals above Rs. 50,000/- except for S. No. 3, 4(a), 4(b), 8, 9, 10, 22 & 24 shall be in consultation with finance department.
4. The Powers delegated to an authority can also be exercised by the higher authorities.
5. Above delegation shall be applicable for all types of assignments pertaining to Consultancy and Business Development.
6. Exercise of various Powers are subject to provision in Budget or in the Cost Sheet of the Assignment as the case may be
7. Tenders shall be called by C&M department at NML HQ.
8. Wherever the expenditure is to be made in a foreign currency, equivalence of same will be calculated in INR as per SBI Bills Selling Exchange rate on the date of initiation of the proposal.
Expenditures related to international assignments may be allowed in any currency as per the requirement of business as approved by CEO.
9. Level of tender committee shall be in line with DOP of NML or as specified in relevant circulars adopted or framed for NML.
10. Appointment of agents in target market/geography/region shall be carried out as per the extant "Procedure for appointment of local agent/sponsor in foreign countries" as prevalent in parent company.



GUIDELINES FOR ENGAGING EXPERTS FOR CONSULTANCY ASSIGNMENTS

Following guidelines shall be followed in case of requirement of engaging expert in any field or Speciality service:

1. If requirement along with profile of expert including experience/ expertise/qualification/ work area/Certification has been suggested by Client, then the same shall be adopted.
2. If profile is not defined by client or requirement is at back end to fulfil obligation of consultancy wing in any assignment then it shall be framed and proposed by a pre-bid tie-up committee of members not less than E7 level comprising representative of C&M, Finance, BD and either of Engineering/Mining/Project Management/HR as per requirement.
3. Approval of profile shall be obtained from CEO.
4. BD may empanel or engage HR Agency who provide the personnel with requisite profile and engage personnel provided by them after declaring/negotiating terms and conditions of engagement. Agency will be paid a pre-defined fee as per terms of engagement.
5. BD may also identify and empanel experts in different fields of expertise based on submission of their profile and expression of interest invited through advertisement, web based or print media Terms and conditions of engagement may be declared while taking offers from them for a particular assignment.
6. In case of non-availability of empanelled or hired HR Agency and nonavailability of empanelled experts in any field, a committee of 4 members as suggested at point-2 above shall be formulated to study, identify, and suggest the suitable names. The pre-bid tie-up committee nomination shall be approved by CEO.
7. It is possible that multiple choices may not be available with requisite profile or terms and conditions of work requirement.
8. In case of availability of multiple choices in panel or identified otherwise, minimum 3 and maximum 10 offers per requirement should be invited based on priority decided by above committee.
9. Offers from selected persons may be invited and evaluated on Limited/Single tender in line with prevailing procedures. CEO shall be the competent authority for approving the recommendation of the above committee.
10. Powers delegated in this DOP S No 5 (a) and 5 (b) shall be applicable in all cases.
11. However, in case of hiring of more than one expert for the same assignment in the same or different fields the total cost of experts hiring all together shall be considered for deciding the level of competent authority for approval.



Signature